

Subject: Obtaining a list of members in the context of a buyout by the football club purchaser and the use of personal data obtained for commercial mailing purposes

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Dirk Van Der Kelen and Frank De Smet, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Mr. X, hereinafter "the complainant"

The defendant: Y, represented by lawyer Master Nicolas Wesling and the general director [...], hereinafter "the defendant"

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I. Facts and procedure

1.

On January 8, 2020, the complainant filed a complaint with the Data Protection Authority against the defendant. Previously, the complainant had submitted the case to the First Line Service for mediation, but he claims that this mediation procedure did not yield a satisfactory result.

2.

The subject of the complaint concerns the receipt of an unsolicited commercial email sent on October 2, 2018, to the complainant by the defendant. Following this, the complainant contacted the defendant on October 3, 2018, asking how his personal data had been obtained without his knowledge, given that he had never provided it to them himself. He therefore requested access to his personal data with an explicit request for the manner in which the defendant obtained his personal data as well as the legal basis on which the processing of this data is based. According to the complainant, the defendant did not provide a satisfactory response to his access request; they only specified that his personal data had been deleted, although the complainant had not requested this. Furthermore, the complainant asserts that unsolicited emails were still sent to him, despite the notification of the deletion of his data by the defendant.

3.

The complaint is part of a bankruptcy in which the curator first transferred the member file of the bankrupt football club to SA W on June 8, 2018, and the file was subsequently transferred to the defendant on June 13, 2018. The personal data of the subscribers of the bankrupt club was already in the database of Z, a limited liability company under Dutch law, prior to the bankruptcy, as the bankrupt club had decided to collaborate with Z regarding communication with supporters. The defendant subsequently decided to continue the collaboration with Z.

4.

On February 10, 2020, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

5.

On March 5, 2020, the Contentious Chamber decided to request an investigation from the Inspection

Service, pursuant to Articles 63, 2° and 94, 1° of the LCA.

6.

On March 6, 2020, in accordance with Article 96, § 1 of the LCA, the request from the Contentious Chamber to conduct an investigation was transmitted to the Inspection Service, along with the complaint and the inventory of documents.

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7.

On December 1, 2020, the Inspection Service's investigation is concluded, the report is attached to the file, and it is transmitted by the Inspector General to the President of the Litigation Chamber (Article 91, § 1 and § 2 of the LCA).

The report contains findings related to the subject of the complaint and concludes, in summary, that:

1. The Inspection Service finds that the transfer of personal data by W to the defendant has not been directly and formally documented as required by Articles 5.2 and 26.1 of the GDPR.

2. Z can be considered a processor within the meaning of Article 4.8 of the GDPR. However, there is no processing contract, which constitutes a violation of Article 28.3 of the GDPR.

3. The defendant has violated Article 6 of the GDPR, in the absence of a valid basis for both the transfer of personal data from the bankrupt club to the defendant and for the mailing to the subscribers of the bankrupt club.

4. The defendant has violated the principle of purpose limitation (Article 5.1 of the GDPR), given that the communication of personal data by the curator to another data controller, namely the defendant, cannot take place based on compatibility with the purpose of collection. The Inspection Service's viewpoint is based on a perspective previously adopted by the Dutch regulator (the Autoriteit Persoonsgegevens). The Inspection Service also associates this with a violation of Article 5.2 of the GDPR.

5. The information regarding the transfer to third parties in the privacy policy is unclear and not compliant with Article 12.1 of the GDPR. The Inspection Service's report specifies that the privacy policy refers to both Directive 95/46/EC and the GDPR. According to the Inspection Service, this suggests that the privacy policy dates from the period between the publication date of the GDPR, May 4, 2016, and May 25, 2018. The report mentions that, according to a hypothesis, the privacy policy of the bankrupt company may have been adopted, albeit with the contact details replaced.

6. The defendant violates the obligation to inform in the various privacy statements on the websites [...] which have not been coordinated. Therefore, this constitutes a violation of Articles 12, 13, and 14 of the GDPR.

7. Regarding the websites, it is noted that the three cookie statements - which must be distinguished from the privacy statements - have not been drafted in accordance with the information obligation of Articles 12, 13, and 14 of the GDPR. The requirement for consent on the websites has not been properly integrated, as required by Articles 7.2 and 7.3 of the GDPR. The various websites do not comply with the principles of data protection by design and data protection by default, which constitutes a violation of Article 25 of the GDPR. The principle of data retention limitation (Article 5.1.e of the GDPR) is not respected as the websites retain cookies for too long.

8. The privacy and cookie statements on the websites are not consistent and have not been drafted in accordance with Articles 5.1.a), 6, 7.3, 12.1, 13, and 14 of the GDPR.

9. The complainant's right of access (Article 15 of the GDPR) has been violated by the defendant.

10. The method of collecting personal data on the websites does not comply with the principle of data protection by design and data protection by default (Article 25 of the GDPR).

11. The information included in the register of processing activities does not meet the requirements of Article 30.1 of the GDPR.

12. The obligation to cooperate has been violated (Article 31 of the GDPR).

8.

On March 3, 2021, the Litigation Chamber decides, based on Article 95, § 1, 1° and Article 98 of the LCA, that the file can be examined on the merits and informs the concerned parties by registered mail of the provisions as stated in Article 95, § 2 and Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

The deadline for receiving the defendant's response conclusions has been set for April 15, 2021, the deadline for the complainant's reply conclusions for May 6, 2021, and the deadline for the defendant's reply conclusions for May 27, 2021.

On March 22, 2021, the defendant requests a copy of the file (Article 95, § 2, 3° of the LCA), which was transmitted to them on April 6, 2021. The defendant also agrees to receive all communications related to the case electronically and expresses their intention to exercise the possibility of being heard, in accordance with Article 98 of the LCA.

9.

On April 15, 2021, the Litigation Chamber receives the response conclusions from the defendant. First, the defendant concretely outlines, based on the attached documents, how they obtained the member file of the bankrupt club, highlighting the specific circumstances, namely the transfer of data following the bankruptcy with the subsequent follow-up, as well as the timeframe, namely the coincidence with the entry into force of the GDPR. In particular, regarding the sending of emails to the complainant, the defendant states that an "Unsubscribe" button was provided and that the potential harm to the individual concerned was limited to receiving a single unwanted email.

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For the sending of the email, the defendant invokes its legitimate interest. The defendant argues that both the privacy statement and the cookie statement have been adapted to the remarks of the Inspection Service and that each email contains a link referring to the privacy statement. Finally, the defendant notes that neither Z nor the curator has raised any objections regarding the transfer of data or the sending of commercial messages to the individuals listed in the members' file.

10.

On May 3, 2021, the Contentious Chamber receives the reply conclusions from the complainant in which he emphasizes that his request to the defendant did not concern the deletion of his data but that he nonetheless wished for the defendant to explain how it had obtained his data. Given that the defendant has continued to refuse to provide details on this matter, the complainant believes that it has violated the GDPR. The complainant asserts that the uncertainty raised by the defendant regarding the application of the GDPR in the first months after its entry into force is not a valid argument, considering that a broad communication campaign took place on this subject beforehand. The complainant also responds to the defendant's assertion that the complainant's intention would be to harm it rather than to protect his interests. The complainant states that he has previously been a victim of identity fraud, which is why he is particularly attentive to the protection of his personal data.

11.

On May 27, 2021, the Contentious Chamber receives the reply conclusions from the defendant, which reiterate the various elements as presented in the response conclusions and updates them by adding documents, in order to demonstrate that in the meantime, it has made efforts to find solutions to the issues raised in the report of the Inspection Service.

12.

On January 22, 2024, the parties are informed that the hearing will take place on February 20, 2024.

13.

On February 20, 2024, the parties are heard by the Contentious Chamber.

14.

On February 22, 2024, the minutes of the hearing are submitted to the parties.

15.

On February 22, 2024, the Contentious Chamber receives a remark from the complainant regarding the minutes, which it decides to include in its deliberation.

16.

On July 4, 2024, the Contentious Chamber informs the defendant of its intention to impose an administrative fine as well as the amount of it, in order to give the defendant the opportunity to defend itself before the sanction is actually imposed.

1 The complainant is clearly referring here to the date on which the GDPR became applicable, namely May 25, 2018 (art. 99.2 of the GDPR), not to the date of entry into force, namely May 24, 2016 (art.

99.1 of the GDPR).

of the circumstances, the Chamber Contentieuse assesses whether the new purpose for which the members' file is processed in the context of bankruptcy can be considered compatible with the initial purpose communicated to the complainant at the time of their affiliation with the club as a supporter.

19. In accordance with Article 5.1(b) of the GDPR, the processing of personal data for purposes other than those for which the personal data were initially collected should only be permitted if it is compatible with the purposes for which the personal data were initially collected. Given the circumstances, the Chamber Contentieuse assesses whether the new purpose for which the members' file is processed in the context of bankruptcy can be considered compatible with the initial purpose communicated to the complainant at the time of their affiliation with the club as a supporter.

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Regarding the criteria set out in Article 6.4 and in Recital 50 of the GDPR, it must therefore be verified whether the subsequent processing, namely the transfer of the members' file - containing the complainant's data - to the curator and then to a purchaser of the assets falling within the estate (in this case, the defendant) is compatible with the initial processing consisting of the registration of football supporters' affiliation. The Disciplinary Chamber concludes that the complainant entrusted his personal data to the declared bankrupt club to affiliate with the club as a subscriber and could not reasonably expect that this same data would be used in the context of a potential subsequent bankruptcy for a transfer to a curator without being able to oppose it and without being informed, regardless of the purpose for which the curator would subsequently process the obtained personal data. In this regard, the Disciplinary Chamber specifies that when assessing the complainant's reasonable expectations, it takes into account the fact that the curator may in turn monetize the members' file thus obtained in the context of his legal mission for any other purpose that must be distinguished from the initial purpose, and this mission is not limited to the realization of a revival of the club. Given that the curator is not obliged to solely facilitate a revival but that it is possible, as soon as a bankruptcy occurs, for the curator to monetize the members' file for any other new purpose, and this against the will of the concerned individuals, the processing of data by the curator in the event of bankruptcy simply cannot be considered as compatible subsequent processing.

20. The finding that there is no question of compatible subsequent processing implies that a distinct legal basis is required for the transfer of the members' file by the curator to the defendant to be deemed lawful.

21. Processing of personal data, and therefore also incompatible subsequent processing as in this case, is indeed lawful only if there is a legal basis for this purpose. For incompatible subsequent processing, it is necessary to rely on Article 6.1 of the GDPR as well as on Recital 50 of the GDPR. Recital 50 of the GDPR indicates that a distinct legal basis is required for the processing of personal data for purposes that are not compatible with the purposes for which the data were initially collected.

2 Recital 50 of the GDPR: "[...] In order to establish whether the purposes of subsequent processing are compatible with those for which the personal data were initially collected, the controller, after having complied with all the requirements related to the lawfulness of the initial processing, should take into account, among other things: any link between these purposes and the purposes of the intended subsequent processing; the context in which the personal data were collected, in particular the reasonable expectations of the data subjects based on their relationship with the controller, regarding the further use of such data; the nature of the personal data; the consequences for the data subjects of the intended subsequent processing; and the existence of appropriate safeguards both in the context of the initial processing and the intended subsequent processing."

3 Recital 50 of the GDPR: "The processing of personal data for purposes other than those for which the personal data were initially collected should only be permitted if it is compatible with the purposes for which the personal data were initially collected. In this case, no distinct legal basis from that which allowed the collection of the personal data will be required. [...]"

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personal data were initially collected. These distinct legal bases that allow for the consideration of processing as lawful, including therefore subsequent incompatible processing, are defined in Article

6.1 of the GDPR.

22.

The Contentious Chamber examines to what extent the legal bases as defined in Article 6.1 of the GDPR can be invoked by the defendant to legitimize the subsequent processing of personal data concerning the complainant. The report from the Inspection Service refers in this regard to a letter addressed by the 'Autoriteit Persoonsgegevens' [Translator's note: the Dutch equivalent of the Data Protection Authority] on January 6, 2020, to the Nederlandse Vereniging voor Insolventierecht Advocaten (INSOLAD) (Dutch Association of Lawyers Specializing in Insolvency Law)⁴ which specifies that for the transfer of the members' file by the trustee to third parties (such as the defendant), the prior informed consent of each member is required individually. However, this is not the case in the present file.

23. Given that there are no elements in the file indicating another possible legal basis as outlined in Article 6.1 of the GDPR, the Contentious Chamber verifies whether the transmission of the members' file by the trustee to the defendant can be based on Article 6.1.f) of the GDPR, that is to say, the legitimate interest of the trustee to proceed with this transmission. The Contentious Chamber indeed considers that for a complete analysis regarding the legal basis, all legal bases must be examined. This is not the case in the aforementioned letter addressed by the Autoriteit Persoonsgegevens to INSOLAD, in which only consent (Article 6.1.a) of the GDPR) is presumed as the legal basis for the transmission by the trustee, without verifying whether the legitimate interest (Article 6.1.f) of the GDPR) can serve as a possible legal basis. The report from the Inspection Service also does not contain an analysis regarding the application of Article 6.1.f) of the GDPR as a possible legal basis for the transmission of the members' file by the trustee to the defendant. The question of whether the trustee, as the data controller for the transmission to a third party, can invoke the legitimate interest is examined. The report from the Inspection Service does specify that for the processing in question itself (the transmission of personal data from the bankruptcy estate to the defendant and/or via Z), the defendant has not provided any explicit explanation that could justify recourse to Article 6.1.f) of the GDPR, although the Inspection Service asserts that in its

4 Vereniging voor Insolventierecht Advocaten (INSOLAD). Through INSOLAD, the AP (Autoriteit Persoonsgegevens in the Netherlands) aims to draw the attention of both lawyers specializing in insolvency law and bankruptcy trustees to the legal framework applicable to the processing of personal data in the succession of a (legal) person in bankruptcy and to the responsibility of complying with the GDPR that rests on the trustee in this context. The letter specifies the following:

"When selling personal data (e.g., in the form of a customer file) (...), this involves communication to another data controller. (...) Such communication of personal data must be based on the prior consent of the affected person(s), in accordance with Article 7 of the GDPR." [Translator's note: free translation made by the translation service of the Data Protection Authority, in the absence of an official translation]

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letter dated March 25, 2020, addressed to the defendant, it did, however, refer to the legal elements that must be demonstrated for the application of Article 6.1(f) of the GDPR. The Contentious Chamber notes, however, that the letter in question only mentions that the defendant relies on "legitimate interest" to establish the lawfulness of the processing(s) and that, for this purpose, three elements (legitimate interest, necessity of processing, and balancing of interests) must be demonstrated. This letter from the Inspection Service only mentions "processing(s)" in general terms, without specifying in this regard that the defendant is expected to justify the legal basis for "the transmission of the file of members of the bankruptcy estate." This leads the Inspection Service to subsequently assert that the legal basis for the initial transmission has not been clarified or demonstrated by the defendant. The report contains no explanation in this regard. The inspection report only elaborates on the legitimate interest of the defendant as the data controller, with the Inspection Service limiting itself to the question of whether the defendant can use the data obtained from the bankruptcy estate for sending direct mail based on Article 6.1(f) of the GDPR. In this context, the Inspection Service takes direct marketing as the purpose pursued by the defendant to verify whether Article 6.1(f) of the GDPR can apply. However,

the Contentious Chamber considers it crucial to first ask whether the transmission of the file of members by the trustee to the defendant occurred lawfully, only then to pose the question of whether the defendant could reuse the obtained data for sending direct mail.

24.

In accordance with Article 6.1(f) of the GDPR and the case law of the Court of Justice of the European Union (hereinafter "the Court"), three cumulative conditions must be met for a data controller to validly invoke this legal basis, namely, firstly, the pursuit of a legitimate interest by the data controller or by the third party or parties to whom the data is communicated; secondly, the necessity of processing the personal data for the realization of the legitimate interest pursued; and thirdly, the condition that the rights and fundamental freedoms of the data subject do not prevail" (judgment "Rigas"5).

25.

In other words, in order to invoke the legal basis of "legitimate interest" in accordance with Article 6.1(f) of the GDPR, the data controller must demonstrate that:

1) the interests it pursues with the processing can be recognized as legitimate (the "purpose test");

2) the intended processing is necessary to achieve those interests (the "necessity test");

and

5 CJEU, May 4, 2017, C-13/16, Valsts policijas Rīgas reģiona pārvaldes Kārtības policijas pārvalde v. Rīgas pašvaldības SIA „Rīgas satiksme”, paragraph 28. See also CJEU, December 11, 2019, C-708/18, TK v. Asociația de Proprietari bloc M5A-ScaraA, paragraph 40.

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3) The weighting of these interests against the interests, freedoms, and fundamental rights of the individuals concerned weighs in favor of the data controller (the "balancing test").

26.

Regarding the first condition (the so-called "purpose test"), the Contentious Chamber considers that liquidating a bankruptcy must be regarded as being carried out in pursuit of a legitimate interest. This allows the trustee to fulfill his mission rooted in Book XX of the Economic Law Code (CDE), namely to proceed with the liquidation of the bankruptcy estate as specified in Article XX.98 of the CDE⁶. This legal mission implies that the trustee is obliged to sell the assets still present in the estate in order to honor the debts of the bankrupt towards his creditors. In this regard, it is clear that the trustee is attempting to sell at the highest possible price, which implies, in a certain sense, a commercial interest. Such a commercial interest may be a legitimate interest in accordance with Recital 47 of the GDPR⁷. This is also supported in Opinion 06/2014 of the "Article 29" Working Party on Data Protection⁸ (the legal predecessor of the EDPB). Therefore, the first condition set out in Article 6.1(f) of the GDPR is fulfilled⁹.

27.

To fulfill the second condition, it must be demonstrated that the processing is necessary for the achievement of the pursued purposes. This means more precisely that it must be asked whether the same result can be achieved by other means, without processing personal data or without substantial processing that is unnecessary for the individuals concerned.

28.

In this context, the Contentious Chamber takes into account that in the present case, it concerns a revival of the football club by the defendant, as evidenced by the factual elements mentioned in the defendant's conclusions. This necessarily implies a sale of the football club in its entirety to the defendant in view

6 Article XX.98 of the CDE. "The purpose of the bankruptcy procedure is to place the debtor's assets under the management of a trustee, who is responsible for administering the bankrupt's estate, liquidating it, and distributing the proceeds of the liquidation among the creditors."

7 Recital 47 mentions that the processing of personal data for direct marketing purposes can be considered as being carried out to meet a legitimate interest. Direct marketing is therefore an example of a commercial interest that can be regarded as a legitimate interest. See also the judgment of the Court of Justice of the European Union of July 29, 2019 (case 40/17 Fashion ID).

8 Opinion 06/2014 on the notion of legitimate interest pursued by the data controller within the

meaning of Article 7 of Directive 95/46/EC:

"The fact that the data controller pursues such a legitimate interest by processing certain data does not necessarily mean that it can invoke Article 7, point f), as a legal basis justifying the processing. The legitimacy of the pursued interest is only a starting point, one of the elements that must be analyzed under Article 7, point f). The possibility of invoking this provision will depend on the outcome of the subsequent balancing exercise.

By way of illustration: data controllers may have a legitimate interest in knowing their customers' preferences in order to better tailor their offers and ultimately provide products and services that better meet the needs and desires of customers. In this perspective, Article 7, point f), may constitute an appropriate legal basis for certain types of marketing activities, online or offline, provided that there are appropriate safeguards [including, among others, a functional mechanism allowing opposition to such processing in accordance with Article 14, paragraph b), as will be seen in section III.3.6, The right to object and beyond]." [emphasis added]

9 See also Decision on the Merits 46/2024 of March 15, 2024.

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regarding the continuity of the club. In order to carry out this relaunch, it is required and therefore necessary that the membership file be transmitted to the acquiring club, in this case, the defendant. Without the contact details of the subscribers, specifically limited to first name, last name, and email address, it is impossible to reach the subscribers, and any relaunch after a bankruptcy would become de facto impossible. This leads to the conclusion that the second condition of Article 6.1(f) of the GDPR is also fulfilled.

29.

To verify whether the third condition of Article 6.1(f) of the GDPR - the so-called "balancing test" between the interests of the data controller on one hand and the freedoms and fundamental rights of the data subject on the other hand - can be fulfilled, it is first necessary to take into account the reasonable expectations of the data subject, in accordance with Recital 47 of the GDPR. It is particularly important to assess whether "the data subject can reasonably expect, at the time and in the context of the collection of personal data, that such data will be processed for a specific purpose."

30. This aspect is also emphasized by the Court in its judgment "TK v. Asociația de Proprietari bloc M5A-ScaraA" of December 11, 2019, which specifies the following:

"The reasonable expectations of the data subject that their personal data will not be processed are also relevant for the purposes of this balancing test when, in the circumstances of the case, that person cannot reasonably expect further processing of such data."

31.

The Contentious Chamber verifies whether the interest of the defendant is proportional to the impact on the freedoms and fundamental rights of the data subjects, including the complainant. In this regard, the Contentious Chamber notes that it is clear that the legal mission of the curator is to defend the interests of the creditors. The curator will therefore wish to achieve the highest possible profit by selling the entirety of the bankrupt's assets, including the complete membership file, to the person responsible for the relaunch. The membership file must indeed be considered essential for the person responsible for the relaunch, given that having the contact details of the subscribers constitutes the starting point for enabling a relaunch.

32.

In contrast, there is the interest of the subscribers to be able to continue to have control over their personal data, so that it is not transferred to an acquirer - in this case, the defendant - without being informed and without having the opportunity to object. In this context, it should, however, not be overlooked that in the normal expectation scheme of the complainant, in the event of bankruptcy, the curator proceeds to sell the assets along with the related membership file in view of the anticipated relaunch of the club. In this instance, as this

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From the agreement of June 13, 2018, the curator has indeed fully transmitted the members' file to the defendant with a view to reviving the club. This revival constitutes, in the eyes of the Dispute Chamber, a fundamental element when weighing interests. Such a revival is also in the interest of the

subscribers in the sense that, within the framework of a continuation of the initial purpose, which is thus pursued unchanged by the acquiring club, the impact on the protection of subscribers' data must be considered minimal, aiming to ensure that subscribers can continue to benefit from the advantages linked to their affiliation.

33. In this context, it must also be taken into account that the data processing related to the affiliation concerns only the recording of the first name, last name, and email address. The impact on the complainant is therefore extremely low, and the processing of their personal data is limited to a minimum.

34. All of the aforementioned elements lead the Dispute Chamber to conclude that the third condition is also met and that the transmission of the client file by the curator to the defendant can be based on the legal basis of Article 6.1.f) of the GDPR, implying that this subsequent incompatible processing must be considered lawful within the meaning of Article 6 of the GDPR. In this sense, the agreement of June 13, 2018, drafted by the curator, specifies that the defendant holds all rights and obligations concerning the former football club that was subject to bankruptcy. The factual elements of the case thus reveal that, regarding the obtaining of personal data of the subscribers, including that of the complainant, the defendant has taken over the rights and obligations of the former bankrupt football club, including those related to the data file concerning the subscribers. It should therefore be noted that the complainant's data was transmitted to the defendant in accordance with Article 6 of the GDPR.

35. The answer to the question of whether the curator has complied with the obligation under Article 12 of the GDPR in conjunction with Article 14 of the GDPR to ensure transparent data processing, by providing the concerned individuals with the required information, particularly regarding its legitimate interest (Article 14.2.b) of the GDPR), and by drawing attention to their right to object (Article 14.2.c) of the GDPR), does not emerge from the documents in the case. Since this point is not the subject of the complaint and no element indicating that the GDPR has been violated in this regard has been put forward, the Dispute Chamber does not delve into this aspect.

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Commercial mailing by the defendant

36. For marketing services concerning the data of supporters, the defendant uses Z12, which, as also confirmed in the inspection report, acts as a subcontractor within the meaning of Article 4.8) of the GDPR, and has already been engaged by the club in

12 A limited liability company under Dutch law.

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bankruptcy and continued collaboration with the defendant. The Contentious Chamber notes that the status of subcontractor for Z remained unchanged for the entire duration of the designation to ensure communications with supporters, the club's subscribers. As soon as the original club was declared bankrupt, the curator indeed took over the role of data controller (see above) and W subsequently became the data controller following the transfer carried out by the curator that took place on June 8, 2018, after which the responsibility for data processing was definitively transferred to the defendant following the cooperation agreement concluded on June 13, 2018.

37. It appears from the documents that the defendant instructed subcontractor Z, in accordance with the proposal developed by the subcontractor at the request of the defendant, to send an email to the members of the bankrupt football club inviting them to create an account on the new online ticketing platform in order to purchase subscriptions and tickets. This email also contained the newsletter from October 2018. According to the documents, both in direct communication with the complainant and in the context of the mediation procedure by the First Line Service, the defendant invokes, as the data controller, its legitimate interest in contacting the subscribers listed in the membership file of the bankrupt club, via the direct mail sent by the subcontractor.

38. The Contentious Chamber emphasizes that the legitimate interest of the defendant could apply as a legal basis for processing the complainant's identification data as included in the membership file for direct marketing purposes. Recital 47 of the GDPR explicitly states that the processing of personal data for direct marketing purposes (Note: prospecting in the sense of the GDPR) can be considered as being carried out in pursuit of a legitimate interest (art. 6.1.f) of the GDPR). This means that the data

controller does not need to obtain the consent of the data subject prior to processing for direct marketing purposes (art. 6.1.a) of the GDPR).

39. In order to base the direct mail sent to former subscribers on the legal basis of "legitimate interest," it is also necessary to succeed in the aforementioned triple test.

13 Article 6.

"1. Processing shall be lawful only if and to the extent that at least one of the following applies:

a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;

[...]

f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child."

14 Recital 47 of the GDPR: "[...] The processing of personal data for direct marketing purposes may be regarded as being carried out for the purposes of legitimate interest."

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40. Regarding the first condition (the so-called "purpose test"), the Contentious Chamber considers that the purpose pursued by the defendant, which consists of contacting former subscribers once by email to offer them a subscription with the acquiring club during the relaunch, can be regarded as a legitimate interest within the meaning of recital 47 of the GDPR. Therefore, the first condition set out in Article 6.1(f) of the GDPR is fulfilled.

41.

Concerning the second condition (the so-called "necessity test"), the defendant has put forward arguments that make it plausible that, with the alternatives that would be, according to the Inspection Service, less intrusive for the former subscribers concerned than the direct mail that was sent, the pursued purpose would not have been achieved. While the Inspection Service refers to a media campaign and leaflets, the defendant emphasizes that it is impossible to reach all interested supporters through a media campaign (supporters who are not yet aware of the offer would then directly contact the defendant, which would not be feasible). The distribution of leaflets in the stadium is also not an option, according to the defendant, given that supporters must necessarily first be informed of a match in order to attend and then be able to receive a leaflet there. In this regard, the defendant also highlights the context in which a football match takes place, where the majority of supporters will most likely return home without a leaflet and therefore will not be informed of its content.

42.

The Contentious Chamber believes that without the direct mail in question, the specific target group aimed at all former subscribers cannot be reached. The proposed alternatives would indeed imply that a portion of the supporters would not be reached in the case of leaflet distribution in the stadium or in the case of a media campaign that would also target individuals who do not belong to the target group at all. The second condition must therefore be considered fulfilled.

43. In assessing the third condition, the so-called "balancing test," the reasonable expectations of the former subscribers prevail. It is clear that the former subscribers, as supporters of the former football club, were undeniably aware of the bankruptcy affecting the club, with the inherent possibility that the club could be taken over.

44. The Contentious Chamber concludes that the defendant rightly invokes the legal basis set out in Article 6.1(f) of the GDPR to process the data as included in the members' file for direct marketing purposes.

b) Principle of transparency and obligation to inform

45. In light of the defendant's right to process personal data for direct marketing purposes based on its legitimate interest, there is an obligation for the defendant,

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to follow up on the opposition that can be made at any time by the person concerned against the

processing of personal data relating to them without having to provide any justification for this (art. 21.2 and 21.3 of the GDPR)¹⁵. Although the complainant does not indicate having exercised their right to object, the Litigation Chamber verifies to what extent the defendant has complied with their information obligation under Article 12 in conjunction with Article 14 of the GDPR. The information obligation on the part of the data controller is indeed an obligation towards the data subjects that implies their right to transparent data processing (art. 5.1.a) of the GDPR).

46. Regarding the information related to the right to object (art. 14.2.b) of the GDPR) in particular, Article 21.4 of the GDPR¹⁶ explicitly states that this possibility must be presented separately from any other information, from the first message to the data subject, in this case, the complainant. However, the message that is the subject of the complaint does not clearly specify to the complainant the existence of the right to object. Moreover, the email only contains the option to click on "Unsubscribe" without any explanation in this regard for the data subject. It is indeed necessary to allow the data subject to exercise their right to object to the processing of their data for the purpose of direct marketing, and this possibility must be expressed to them in an understandable manner. The requirement to highlight the right to object, thus significantly enabling the data subject to assert this right, is completely lacking. Simply offering a click on "Unsubscribe" cannot indeed be considered as explicitly and clearly bringing the right to object to the attention of the data subject, allowing them to assess, with full knowledge of the facts, what consequences are associated with this "Unsubscribe" action.

Recital 70 of the GDPR nevertheless states that this right should be explicitly brought to the attention of the data subject and presented clearly and separately from any other information¹⁷. In the absence of notification of this right to object to the complainant at the time they were first contacted, the data controller acted in violation of Article 21.4 of the GDPR.

47.

Regarding the other information (art. 14.1 and 14.2 of the GDPR) that the data controller must provide, this provision (art. 14.3.b) of the GDPR) requires that this information also be communicated at the latest at the time of the first contact with the

¹⁵ See also in this regard Recital 70 of the GDPR: "When personal data are processed for the purposes of prospecting, the data subject should have the right, at any time and without charge, to object to such processing, including profiling to the extent that it is related to such prospecting, whether it is an initial or subsequent processing. This right should be explicitly brought to the attention of the data subject and presented clearly and separately from any other information."

¹⁶ Article 21.4 of the GDPR. "At the latest at the time of the first communication with the data subject, the right referred to in paragraphs 1 and 2 is explicitly brought to the attention of the data subject and is presented clearly and separately from any other information."

¹⁷ See footnote 2.

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concerned person. The first message to the complainant also contains not the slightest information. The first message should have at least included a link to the privacy policy that presents this information in an accessible, concise manner and in clear terms. Such a link was not included in the email sent to the complainant, and the Inspection Service's report further emphasizes that the various privacy statements on the sites [...] were not coordinated. Given that the first message to the complainant does not contain any reference to the necessary information to ensure transparent data processing, this constitutes a violation of Articles 5.1.a), 12.1, and 14 of the GDPR.

c) Right of access

48. The complainant repeatedly informed the defendant that he was requesting a follow-up to his request for information regarding the origin of his data and the legal basis for its processing, without at any time requesting the deletion of the data. The defendant's response, consisting of deleting the complainant's personal data, cannot therefore be considered an appropriate follow-up to the complainant's request, which specifically aimed to learn from the defendant how it obtained his personal data, indicating the legal basis for data processing on the part of the defendant, and in general to access his personal data.

49. The Disciplinary Chamber finds, based on the documents supporting the complaint, that the complainant explicitly stated in his first request dated October 3, 2018, that he wished to know how the defendant obtained his data and on what basis it was processed, and that he wanted to access his personal data held by the defendant.

50. However, the defendant did not provide any response. Instead, the complainant received another unsolicited advertising email from the defendant on November 7, 2018. On November 8, 2018, however, the complainant received the defendant's response to his first request, stating that his data had been deleted. On the same day, the complainant replied, pointing out that his request was aimed at accessing his personal data (origin, purposes of processing, legal basis) and not at having it deleted. The defendant, in turn, claims that it does not trade in data but only sends out mailings from the ticketing and communication systems to all subscribers of the bankrupt football club who had registered for this purpose. It was only during the intervention of the Frontline Service in the mediation procedure initiated after the complainant took the initiative that the defendant explained on December 11, 2018, that the purchase of the estate along with all related software systems of the bankrupt club involved obtaining the personal data of former subscribers, of which

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also those of the complainant. Based on the data file thus obtained, former subscribers were contacted by the defendant to extend their subscription, if they wished, with the option to unsubscribe. The defendant indicates that its legitimate interest constitutes the basis for this purpose.

51.

These factual elements demonstrate that the complainant did not receive a response to the various elements in accordance with Article 15.1 of the GDPR related to the right of access as exercised by him and that the legal deadlines as defined in Articles 12.3 and 12.4 of the GDPR were also not respected. The defendant thus acted in violation of Articles 12.3 and 12.4 of the GDPR¹⁸, as well as Article 15.1 of the GDPR¹⁹.

d) Other findings

52.

The defendant makes a general remark regarding the report of the Inspection Service that the report refers to case law and opinions that are subsequent to the time it received the members' file.

According to the defendant, this is part of the evolution of the reflections of the Data Protection Authority on which the defendant could not rely at the time of the acquisition of the bankruptcy mass.

18 Article 12 of the GDPR.

[...]

"3. The data controller shall provide the data subject with information on the measures taken in response to a request made under Articles 15 to 22, without undue delay and in any event within one month of receipt of the request. If necessary, this period may be extended by 2 months taking into account the complexity and/or number of requests. The data controller shall inform the data subject of this extension within one month of receipt of the request. When the data subject submits the request in electronic form, the information shall be provided electronically where possible, unless the data subject requests otherwise.

4. If the data controller does not act on the request made by the data subject, it shall inform the data subject without delay and at the latest within one month of receipt of the request of the reasons for its inaction and the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy."

19 Article 15 of the GDPR.

"1. The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning him or her is being processed and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;

- d) where possible, the envisaged duration of storage of the personal data or, if not possible, the criteria used to determine that duration;
 - e) the existence of the right to request from the data controller rectification or erasure of personal data, or restriction of processing of personal data concerning the data subject, or the right to object to such processing;
 - f) the right to lodge a complaint with a supervisory authority;
 - g) where the personal data are not collected from the data subject, any available information as to their source;
 - h) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.
- [...]"

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53. The Contentious Chamber takes this consideration into account in its decision in the sense that it decides to limit the identified violations to the essence of the complaint, namely to the examination of the legal basis, the requirement for transparent information and communication, as well as the respect for the rights of the data subject. This does not mean, however, that the Contentious Chamber could not take into account subsequent case law or an interpretation of the law.

III. Corrective Measures and Sanctions

54. Regarding the identified violation of Articles 5.1.a), 12.1, 14, and 21.4 of the GDPR as well as Articles 12.3, 12.4, and 15.1 of the GDPR, the Contentious Chamber decides to impose an administrative fine under its powers based on Article 83 of the GDPR and Article 100, § 1, 13° of the LCA.

55. The EDPB adopted on May 24, 2023, the Guidelines 04/2022 on the calculation of administrative fines under the GDPR (hereinafter: the Guidelines), pursuant to Article 70, paragraph 1, e) of the GDPR. The Guidelines are directly applicable as they do not provide for a transitional provision for procedures that were already underway at the time of their adoption.

56. The Guidelines describe a methodology for determining the amount of the fine as follows:

Step 1: Identify the processing activities and violations that need to be assessed;

Step 2: Set the starting amount for calculating the fine for the identified violations (starting amount);

Step 3: Assess any aggravating or mitigating circumstances that may require adjustment of the amount set in Step 2;

Step 4: Determine the applicable maximum amounts for the violations and whether any increases from the previous step do not exceed these amounts;

Step 5: Determine whether the final amount of the calculated fine is effective, proportionate, and dissuasive and adjust this amount to these criteria if necessary.

57. The Contentious Chamber determines the amount of the administrative fine using this methodology. On July 4, 2024, the Contentious Chamber informed the defendant, via the sanction form, of its intention to impose an administrative fine of 8,000 euros. On August 13, 2024, the defendant provided its response to the sanction form to the Contentious Chamber. This will be examined in more detail below.

Step 1: Identify the processing activities and violations that need to be assessed

58. In order to determine the starting amount of the fine, it is first necessary, as described in the Guidelines, to examine whether there is one or more behaviors that may be sanctioned. The starting point in this context is that the same processing operation or related processing operations may constitute a single behavior. The term "related" refers to the principle that a single behavior may consist of several actions carried out within the framework of a unified intent and that are so closely linked contextually (notably concerning the identity of the data subject, the purpose, and the nature), spatially, and temporally that, from an objective point of view, they would be considered as constituting a coherent single behavior.

59. The violations concerning the defendant relate to the failure to comply with the principle of transparency, the obligation to provide information (Articles 5.1.a), 12.1, 14, and 21.4 of the GDPR), and the infringement of the right of access (Articles 12.3, 12.4, and 15.1 of the GDPR).

60. In accordance with the Guidelines, the Contentious Chamber explains below that, in this case, there are circumstances that constitute a single behavior, but that this behavior results in not just one but several violations, which implies that the attribution of one violation excludes the attribution of another violation. Indeed, the behavior that led to the complaint and from which the aforementioned violations arose consists of sending the unsolicited email to the complainant. Under the principle of specialty, it is established that the principle of transparency (Article 5.1.a) of the GDPR) as a fundamental principle constitutes a general concept that is concretized in Article 12 of the GDPR in the form of an obligation to provide information on the part of the data controller, namely the defendant. Furthermore, the Guidelines refer to the principle of consumption in cases where the violation of one provision regularly leads to the violation of another, because the first violation constitutes a preliminary step to the other. Thus, the Contentious Chamber concludes that the lack of transparent information and communication (Articles 5.1.a) and 12.1, 14, and 21.4 of the GDPR) by the defendant subsequently deprived the complainant of their right of access, despite Articles 12.3, 12.4 in conjunction with Article 15.1 of the GDPR.

The principle of specialty (*specialia generalibus derogant*) is a legal principle that implies that a more specific provision (derived from the same legal act or from several legal acts with the same legal force) takes precedence over a more general provision, even though both provisions aim at the same objective. See in this regard Case C-10/18 P, *Marine Harvest/Commission*.

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61. The Disciplinary Chamber considers that these circumstances can be regarded as a single and continuous behavior resulting in one or more violations, leading to the imposition of a single administrative fine.

Step 2: Set the Starting Amount

62. As described in the Guidelines, the next step is to set the starting amount of the fine. This starting amount serves as the baseline for subsequent calculations in the following steps, where all relevant facts and circumstances are taken into account. The Guidelines indicate that the starting amount is determined through three elements: i) the qualification of the violations under Article 83, paragraphs 4 to 6 inclusive of the GDPR; ii) the severity of the violation; and iii) the turnover of the company. These three elements are examined below:

i)

Qualification of the Violations under Article 83, Paragraphs 4 to 6 Inclusive of the GDPR

63. As mentioned in the Guidelines, almost all obligations of the data controller are qualified in the provisions of Article 83, paragraphs 4 to 6 inclusive of the GDPR. The GDPR distinguishes between two types of violations. On one hand, violations subject to penalties under Article 83, paragraph 4 of the GDPR, which may incur a maximum fine of 10 million euros (or in the case of a company, 2% of the annual turnover, whichever is higher); on the other hand, violations subject to penalties under Article 83, paragraphs 5 and 6 of the GDPR, which may incur a maximum fine of 20 million euros (or in the case of a company, 4% of the annual turnover, whichever is higher). By this distinction, the legislator has provided an initial indication in abstracto of the severity of the violation: the more serious the violation, the higher the fine.

64. Given that the Disciplinary Chamber finds that the defendant has committed a violation of the principle of transparency and the related obligation to inform (Articles 5.1.a, 12.1, 14, and 21.4 of the GDPR), while also disregarding the complainant's right of access (Articles 12.3, 12.4, and 15.1 of the GDPR), it is not only the basic principles of processing that have been violated, but also the rights of the data subject, which are fundamental and whose violation is consequently sanctioned, in accordance with Article 83.5.a) and b) of the GDPR, with an administrative fine of up to 20 million euros or, in the case of a company, up to 4% of the annual global turnover of the previous financial year, whichever is higher.

ii)

The Severity of the Violation

65. In order to determine the severity of the violation, the Guidelines provide that account should be taken of the nature, gravity, and duration of the violation, as well as the

deliberate or negligent nature of the violation and the categories of personal data concerned.

66. Nature of the violation — The Guidelines provide that the supervisory authority may consider the interest that the breached provision aims to protect and the importance of that provision within the framework of data protection. Transparency has long been an important principle of European Union law. Its primary objective is to foster trust in the processes applicable to citizens by helping them understand, through adequate information, and, if necessary, to challenge those processes. The transparency and the resulting obligation to inform on the part of the data controller enable the data subjects to exercise their rights regarding their personal data, specifically the right of access. This is why transparency must be regarded as a fundamental principle in data protection and, as a general concept, it constitutes a set with the information requirements and communication with data subjects regarding the exercise of their rights. Violations of these fundamental provisions thus constitute serious breaches, subject to the highest administrative fines provided for by the GDPR.

67. Severity of the infringement — The assessment of the severity of the infringement requires that the various elements as mentioned in Article 83.2.a) of the GDPR be verified:

68. Regarding the nature of the processing, the Contentious Chamber notes that the sending of unsolicited mail occurred within the context of the sporting activity of a football club. In this regard, the Contentious Chamber asserts that the defendant does indeed process data within a recreational framework, but this does not prevent her from being, like any other data controller, attentive to compliance with the provisions of the GDPR. Concerning the nature of the infringement, it should therefore be considered as neutral.

69. Regarding the scope of the processing, in order to determine whether personal data is processed on a large scale, the EDPB guidelines on data protection impact assessment recommend taking into account not only the number of data subjects but also the volume of

22 Article 1 of the Treaty on European Union (TEU) states that decisions "are taken with the greatest possible respect for the principle of openness and as close as possible to the citizens." Article 11, paragraph 2 of the TEU reads: "The institutions maintain an open, transparent, and regular dialogue with representative associations and civil society," and Article 15 of the Treaty on the Functioning of the European Union (TFEU) states that citizens of the Union have a right of access to the documents of the institutions, bodies, and agencies of the Union, with the aim of ensuring that these institutions, bodies, and agencies of the Union guarantee the transparency of their work.

23 Guidelines on data protection impact assessment (DPIA) and how to determine whether processing is "likely to result in a high risk" for the purposes of Regulation (EU) 2016/679, adopted on April 4, 2017, as last amended and adopted on October 4, 2017, criterion 5 "Data processed on a large scale."

data, the duration or permanence of the data processing, as well as the geographical extent of the processing²⁴.

70. The present case concerns the personal data of a single data subject, namely the complainant, and based on the defendant's statement to the complainant, the direct mailing in question was sent to 6,000 recipients. This has not been refuted by the defendant, who acknowledges that the direct mailing resulted in a massive registration of former subscribers, leading to the purchase of a subscription by 3,000 individuals.

71. The volume of personal data is rather limited, as it only includes the first name, last name, and email address of the concerned individuals.

72. The Contentious Chamber specifies that when assessing the scope of the data processing, it must be taken into account that the processing is limited to a defined set of personal data that only concerns the list of former subscribers and has no broader application; however, within this framework, it should not be forgotten that several thousand individuals are nonetheless affected. This is an important element for the Contentious Chamber that impacts the amount of the fine.

73. Regarding the purpose of the processing, the Contentious Chamber notes that the processing had the sole purpose of pursuing the affiliation of former subscribers, and therefore not the monitoring of the complainant, nor the analysis of the complainant's personal characteristics, nor the taking of

measures that have negative effects for the data subject. The processing of personal data does not constitute a primary activity of the defendant but represents, however, an important secondary activity for which, as the defendant itself indicates, it is necessary to be able to contact supporters by email. Consequently, the Contentious Chamber specifies that greater importance should be given to violations of the GDPR arising from these necessary secondary activities.

74. Duration of the violation — Regarding the duration of the violation, the Contentious Chamber notes that despite the complainant's express request on October 3, 2018, to access the personal data concerning him, the defendant only concretely responded on December 11, 2018, within the framework of the mediation procedure with the First Line Service, which allowed the complainant to receive information about the essential elements of his access request, namely regarding the origin of his data and the legal basis for the data processing. Regarding the lack of transparency, including the information and communication to the

24 Article 29 Working Party on Data Protection, Guidelines on Data Protection Impact Assessment (DPIA) and determining whether processing is "likely to result in a high risk" for the purposes of Regulation (EU) 2016/679 (WP 248, rev.01, October 4, 2017), p. 12.

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Regarding the individuals concerned, the defendant only took measures to bring the privacy statement into compliance with the GDPR after the Inspection Service's report on December 1, 2020.

75. Nature of the violation (art. 83.2.b) of the GDPR) — The Litigation Chamber recalls that, in general, "intent" encompasses both knowledge and will in relation to the characteristics of an infringement, while the terms "not intentionally" mean that there was no intention to cause the violation, although the data controller or processor violated the duty of care prescribed by the legislation. In other words, two cumulative elements are necessary for a violation to be considered intentional, namely knowledge of the violation and will in relation to that act.

76. Regarding the intentional component, the Litigation Chamber also recalls that the Court of Justice has set a high threshold for an act to be considered intentional. The Court of Justice has thus determined in criminal cases that it is a question of "serious negligence" rather than "intent" when "the responsible person violates, in a characterized manner, the duty of care that they should and could have respected given their qualities, knowledge, skills, and individual situation." Even if one can expect a company whose main activities involve the processing of personal data to take sufficient measures to protect personal data and to fully recognize its obligations in this regard, such a qualified violation does not necessarily demonstrate that it is a deliberate violation.

77. In other words, this means that a data controller can also be sanctioned with an administrative fine under Article 83 of the GDPR for behavior falling within the scope of the GDPR when that data controller could not have been unaware that their behavior constituted a violation, regardless of whether they were aware or not that they were violating the provisions of the GDPR.

25 Article 29 Working Party on Data Protection - Guidelines on the application and setting of administrative fines for the purposes of Regulation (EU) 2016/679 (WP 253, October 3, 2017), p. 12.

26 See also EDPB - Binding Decision 1/2023 on the dispute submitted by the Irish SA on data transfers by Meta Platforms Ireland Ltd (Facebook), point 103, available at https://edpb.europa.eu/system/files/2023-05/edpb_bindingdecision_202301_ie_sa_facebooktransfers_en.pdf.

27 See e.g. CJEU, December 5, 2023, Deutsche Wohnen, C807/21, ECLI:EU:C:2023:950, points 74 et seq. and the case law cited therein.

28 CJEU, June 3, 2008, C-308/06, Intertanko et al. (ECLI:EU:C:2008:312), point 77.

29 See also EDPB – Binding Decision 2/2022 on the dispute arisen on the draft decision of the Irish Supervisory Authority regarding Meta Platforms Ireland Limited (Instagram) under Article 65(1)(a) GDPR, July 28, 2022, point 204.

30 CJEU, December 5, 2023, C-807/21, Deutsche Wohnen SE v. Staatsanwaltschaft Berlin (ECLI:EU:C:2023:950), point 76. See also CJEU, June 18, 2013, C-681/11, Schenker & Co. et al. (ECLI:EU:C:2013:404), point 37; CJEU, March 25, 2021, Lundbeck v. Commission, C-591/16 P (ECLI:EU:C:2021:243), point 156; and CJEU March 25, 2021, C-601/16 P, Arrow Group and Arrow Generics v. Commission (ECLI:EU:C:2021:244), point 97.

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In this matter, the defendant argues that the context of the situation and the specific circumstances must be taken into account, referring to the beginning of the application of the GDPR and the fact that the transfer of the members' file occurred within the framework of a bankruptcy where neither the trustee nor the subcontractor raised any reservations regarding the transfer of data or the sending of commercial messages to the individuals listed in the client file. The defendant contends that at the time of the acquisition of the bankruptcy estate, the GDPR had just come into effect and acknowledges that at that moment, compliance with the GDPR was not at the top of the agenda. Furthermore, the defendant also specifies that the beginning of the application of the GDPR—which almost coincided with the acquisition of the bankruptcy estate—was accompanied by uncertainty and imprecision due to the open-ended descriptions of the provisions in the GDPR, which also led to none of the parties involved considering the principles of the GDPR during the transfer.

In this context, the defendant emphasizes that the non-compliance with the GDPR was entirely due to its ignorance and certainly not to any bad faith. According to the defendant, this assertion is supported by the fact that action was taken following the report from the Inspection Service by making adjustments, notably to the privacy statement, which now includes the required information.

78. According to the Contentious Chamber, the file does not contain elements indicating the defendant's intention to deliberately commit a violation of Articles 5.1.a), 12.1, 14, and 21.4 of the GDPR as well as Articles 12.3, 12.4, and 15.1 of the GDPR, but there is nevertheless a question of gross negligence. The Contentious Chamber indeed notes that the defendant omits the fact that the GDPR provided for a transitional period between its entry into force and its application, namely a duration of two years aimed precisely at giving data controllers sufficient time to comply by May 25, 2018, the date on which the GDPR became applicable. According to the Contentious Chamber, the defendant thus had ample time to make the necessary adjustments to act in accordance with the GDPR, given that according to the information available in the BCE31, it had already been active since at least 2008, albeit under a different name than that of the current club. The defendant cannot also hide behind the trustee or the subcontractor Z to evade its responsibility regarding non-compliance with the GDPR. In accordance with Article 5.2 of the GDPR, the defendant indeed has its own responsibility. However, the Contentious Chamber is willing to show leniency for the beginning of the application of the GDPR, but these are still significant violations of the GDPR for data processing that constitutes a significant secondary activity for the defendant, which leads the Contentious Chamber to attribute medium importance to these violations.

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79. Categories of personal data subject to the violation (art. 83.2.g of the GDPR) — The disputed processing concerns only the processing of the first name, last name, and email address of former subscribers of the club declared bankrupt, which do not fall under the special protection offered by Articles 9 and 10 of the GDPR and are not likely to cause immediate harm or damage to the data subject. Therefore, the Contentious Chamber considers this processing to be neutral for the determination of the amount of the fine.

iii)

Company Revenue

80. The Contentious Chamber specifies that the most recent annual accounts submitted by the defendant concern 2022 and should therefore take into account the revenue for 2022. Since the revenue was not included in the 2022 annual accounts, the Contentious Chamber must use the gross margin for 2022 as an alternative. This gross margin is negative and amounts to -2369 euros, while that of 2021 is positive and amounts to 558,356 euros. However, the Contentious Chamber bases its decision solely on the most recent available figures, namely those for 2022.

iv)

Conclusion Regarding the Starting Amount

a. Theoretical Starting Amount (based on the severity of the violation)

81. Under Article 83.5 of the GDPR, the fine amounts to a maximum of 20 million euros or, in the case

of a company, up to 4% of the total global annual revenue of the previous financial year, with the higher amount being retained, which is not the case here. The maximum legal amount is therefore set at 20 million euros.

82. Based on the assessment of the criteria outlined above, the Contentious Chamber must determine whether the violation is considered to be of low, medium, or high severity. These categories do not detract from the question of whether a fine can be imposed or not.

83. This assessment is not a mathematical calculation in which the aforementioned factors are examined individually, but rather a rigorous evaluation of the specific circumstances of the case, in which all the aforementioned factors are interconnected. Therefore, when examining the severity of the violation, it is necessary to consider the violation as a whole.

32 Consulted via the website of the National Bank of Belgium.

33 EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR (v2.1, May 24, 2023), p. 24, https://edpb.europa.eu/system/files/2024-01/edpb_guidelines_042022_calculationofadministrativefines_fr_0.pdf.

34 EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR (v2.1, May 24, 2023), p. 24, https://edpb.europa.eu/system/files/2024-01/edpb_guidelines_042022_calculationofadministrativefines_fr_0.pdf.

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- When calculating the administrative fine to be imposed for violations of low severity, the supervisory authority sets a starting amount for further calculation between 0 and 10% of the applicable legal maximum.
- When calculating the administrative fine to be imposed for violations of medium severity, the supervisory authority sets a starting amount for further calculation between 10 and 20% of the applicable legal maximum.
- When calculating the administrative fine to be imposed for violations of high severity, the supervisory authority sets a starting amount for further calculation between 20 and 100% of the applicable legal maximum.

84. As a general rule, the more severe the violation within the relevant category, the higher the starting amount is likely to be.

85. The Contentious Chamber found that these were violations of Articles 5.1.a), 12.1, 14, and 21.4 of the GDPR as well as Articles 12.3, 12.4, and 15.1 of the GDPR, which are included under the violations of Article 83.5 of the GDPR. Subsequently, the Contentious Chamber conducted an analysis of the nature of the violation, its purpose, the scope and duration of the processing, as well as the categories of personal data processed and the negligent nature of the violation.

86. Based on the previous assessments of the aforementioned circumstances, the Contentious Chamber considers that the violation under Article 83.5 of the GDPR is of medium severity. In this context, the Contentious Chamber particularly takes into account the significant scope of the processing, the relatively long duration of the violations, and the defendant's negligence in acting in accordance with the GDPR. Therefore, the starting amount for the subsequent calculation must be set at an amount between 10% and 20% of the applicable legal maximum. The Contentious Chamber decides to set a theoretical starting amount of 3 million euros, which is 15% of the applicable maximum legal amount of 20 million euros (art. 83.5 of the GDPR).

b. Adjustment of the Starting Amount Based on the Size of the Company

87. Next, the Contentious Chamber must verify whether the starting amount should be adjusted based on the size of the company. This adjustment is only applicable to companies to which the static legal limit applies, namely when the company has generated revenue of less than 500 million euros in the previous financial year. Since this is the case here, the fine must be adjusted to reflect the importance of the.

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economic power of the company whose annual turnover is less than 2 million euros.

88. The Contentious Chamber has already explained that the violation found falls under

Article 83.5 of the GDPR and is of medium severity. For violations mentioned in Article 83.5 of the GDPR, of medium severity, applied to a company with a turnover of less than 2 million euros, the fine amounts to 0.2 to 0.4% of the starting amount, with the fine not being less than 6,000 euros or exceeding 12,000 euros³⁸.

89. Taking into account the minimum and maximum amounts set in the Guidelines by level, the relevant gross margin of the defendant, and the factors listed in the section "III. Step 2", the Contentious Chamber decides to set the final starting amount for the established violation (falling under Article 83.5 of the GDPR with a medium degree of severity) at 9,000 euros, which is 0.30% of the theoretical starting amount of 3 million euros.

Step 3: Assessment of Aggravating and Mitigating Circumstances

i)

Assessment of any aggravating or mitigating circumstances

90. As mentioned in the Guidelines, it is then necessary to assess whether, in the circumstances of the case, there is a need to set a fine higher or lower than the starting amount defined in this regard. The circumstances to be considered are mentioned in Article 83, paragraph 2 of the GDPR. Each of the circumstances mentioned in this provision can only be assessed once³⁹. In the previous step, the nature, severity, and duration of the violation⁴⁰, the intentional or negligent nature of the violation⁴¹, and the categories of personal data⁴² have already been taken into account. Therefore, only parts c) to f) inclusive and h) to k) inclusive of Article 83, paragraph 2 of the GDPR remain.

91. Relevant violations previously committed by the data controller or the processor (art. 83.2.e) of the GDPR) — The Contentious Chamber takes into account the fact that to date, it has not been seized of any other proceedings against the defendant. Referring to the Guidelines, the Contentious Chamber states that the absence of previous violations must be deemed neutral and cannot be considered as a mitigating factor, given that compliance with the GDPR is the norm⁴³.

92. The manner in which the supervisory authority became aware of the violation (art. 83.2.h) of the GDPR) — Given that the Contentious Chamber became aware of the violation following a complaint, this element is deemed neutral in accordance with the Guidelines⁴⁴.

93. The degree of cooperation established with the supervisory authority in order to remedy the violation and mitigate its potential negative effects (art. 83.2.f) of the GDPR) — The Contentious Chamber notes that the defendant has shown cooperation towards it. Although the report from the Inspection Service finds a violation of the obligation to cooperate (art. 31 of the GDPR), based on the finding that, according to the Inspection Service, the defendant did not respond in a timely manner to the questions posed, but that from the time of the intervention of its lawyer, the previously unanswered questions were indeed answered and that a timely response was also given to the follow-up questions, the Contentious Chamber concludes that this constitutes a sufficient element to assert that the defendant has provided the required cooperation. Furthermore, the Contentious Chamber notes based on the documents in the file that the defendant has followed up on the findings of the Inspection Service not only by drafting a privacy policy and a cookie policy in accordance with the GDPR but also by ensuring that every future email sent by the defendant will contain a link to the privacy policy for effective information. This measure is likely to mitigate the negative effects on the rights of the data subject and is therefore considered a mitigating factor⁴⁵.

94. Other mitigating or aggravating circumstances — The other factual elements in the file are not of a nature to be considered as a mitigating or aggravating circumstance. The context mentioned by the defendant in which the data file was

obtained, namely the bankruptcy of the former football club, as well as the timing of the acquisition of this file, shortly after the GDPR came into effect, have already been considered above. The Contentious Chamber therefore concludes that this circumstance must be regarded as neutral.

95. Finally, the Contentious Chamber draws attention to the fact that the other criteria of Article 83.2 of the GDPR are not, in this case, likely to lead to any other administrative fine than that defined by the Contentious Chamber in this decision.

38 EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR (v2.1, May 24, 2023), p. 52-53.

39 EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR (v2.1, May 24, 2023), p. 24.

40 See points 95-98 of this decision.

41 See points 99-101 of this decision.

42 See point 102 of this decision.

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43 EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR (v2.1, May 24, 2023), p. 33.

44 EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR (v2.1, May 24, 2023), p. 33-34.

45 EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR (v2.1, May 24, 2023), p. 33.

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ii)

Influence on the Amount of the Fine

96. In paragraph 86, the concrete starting amount was set at 9,000 euros. In the following paragraphs, potential mitigating or aggravating circumstances were examined. The Disciplinary Chamber considered that the circumstance as described in Article 83.2.c) of the GDPR, namely the measures taken to mitigate the damage suffered by the data subjects, can be taken into account as a mitigating factor. Other circumstances that may be considered should be regarded as neutral. Therefore, the fine is set at 8,000 euros.

Step 4: Review of Exceeding Maximum Amounts

97. As stated above, for the identified violations, a maximum fine amount of 20 million euros applies. The administrative fine proposed by the Disciplinary Chamber in this decision is significantly below the threshold of this legally established maximum amount.

Step 5: Assessment of Effectiveness, Proportionality, and Deterrence

98. Under Article 83.5.a) and b) of the GDPR, the Disciplinary Chamber may impose an administrative fine for the violations described above. As outlined in the Guidelines, the imposition of a fine can be considered effective if it achieves the objectives for which it was imposed. These objectives may include, on the one hand, sanctioning unlawful behavior and, on the other hand, promoting compliance with the applicable regulations. Regarding the deterrent effect, the Disciplinary Chamber asserts that the administrative fine aims, on the one hand, to discourage recidivism on the part of the defendant and to encourage the latter to take measures aimed at transparent information in respect of the rights of the data subject, particularly concerning communication by email addressed to all individuals listed in a membership file. On the other hand, the deterrent effect also applies to other data controllers, particularly those engaged in similar sporting activities, in order to assess internal operations and, if necessary, take appropriate measures to avoid similar violations. Furthermore, the Disciplinary Chamber considers that the administrative fine is proportionate given the nature, severity, and duration of the violation, as well as the other factors in Article 83.2 of the GDPR as assessed in this decision. The Disciplinary Chamber therefore concludes that both objectives have been achieved and that the administrative fine to be imposed is thus deterrent and proportionate.

46 EDPB, Guidelines 04/2022 on the Calculation of Administrative Fines under the GDPR (v2.1, May

24, 2023), paragraph 142.